

Stereo.HCJDA 38.
Judgment Sheet
IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH, BAHAWALPUR
JUDICIAL DEPARTMENT

....

ICA No.123 of 2014

Saeed Ahmed SheeraziPetitioner.

VS

Government of Punjab etc.....Respondents.

JUDGMENT

Date of hearing: 22.12.2014

Petitioner by: Mr. Muhammad Atif Qureshi,
Advocate.

Respondents by: Mr. Tahir Saeed Ramy. Addl.
A.G.

MIRZA VIQAS RAUF, J. The instant intra court appeal is directed against the judgment dated 9th of December, 2014 passed by the learned Single Judge in Chambers, dismissing the Writ Petition No.838 of 2013 filed by the appellant.

2. The facts necessary for the adjudication of instant appeal are that the appellant feeling aggrieved of the order dated 8th of January, 2013 passed by the respondent No.1 preferred Writ Petition No.838 of 2013. It was asserted in the writ petition that the petitioner was inducted into service as Naib Qasid on contract basis and from the date of his appointment he worked

with best of his ability. It was further averred that the Federal Government had selected him for Khuddam-ul-Hajjaj for Hajj period 2010-2011 and after fulfillment of all codal formalities, he performed Hajj after depositing all the expenses. It was further asserted in the writ petition that due to political pressure, respondent No.2 issued show cause notice to the petitioner and without affording him any opportunity of hearing, his services were terminated vide order dated 14th of May, 2011. The petitioner asserted that against the order of termination, he filed an appeal before the respondent No.2 which was kept pending by the said respondent, however with the intervention of this Court, respondent No.2 finally decided his appeal by way of order dated 8th of January, 2013. The learned Judge in Chambers, after hearing both the sides dismissed the writ petition by way of order dated 9th of December, 2014 by holding that since the petitioner was on contract employment which has been completed, so he has got no vested right to remain in service. It was further held that no infringement of vested right of the petitioner has been established.

3. Before us learned counsel for the petitioner contented that the impugned judgment is contrary to law and is not sustainable. He further maintained that the appellant was selected after fulfillment of all the codal formalities and his contract was also extended for further period. He maintained that due to length of service, the appellant has a right to be regularized in his service in terms of government policy. Learned counsel for the appellant further contended that the learned Single Judge, while dismissing the writ petition filed by the appellant has completely misread the material available on the record. He added that the

judgment impugned is against the settled principles of law and thus not tenable.

4. Conversely the learned Law Officer appearing on behalf of the respondents submitted that the appellant was a contract employee and he was having no vested right to be regularized or kept in service more than the period for which he was appointed. He further added that the services of the appellant were terminated after observing all the codal formalities as the petitioner remained absent from duty w.e.f. 1st of April, 2011 to 21st of April, 2011.

5. We have heard the learned counsel for the petitioner as well as the learned Law Officer and perused the record with their assistance.

6. Record reveals that the petitioner was appointed vide letter No.2575-98/DO/OFWM/RYPK dated 27.06.2005 as Naib Qasid on contract basis by the District Officer on Farm Water Management Rahim Yar Khan. The employment period of the petitioner was extended from time to time, however he absented himself from the duty w.e.f. 1st of April, 2011 to 21st of April, 2011 without obtaining any formal leave. Show cause notice was issued to him on 4th of May, 2011 upon which he was also afforded an opportunity of personal hearing on 12th of May, 2011. The Competent Authority vide its order dated 14th of May, 2011 proceeded to terminate the contract service of the appellant, on account of inefficiency, misconduct and absence from the duty. The appellant filed an appeal before the respondent No.2 challenging the order of his termination but the same was dismissed vide order dated 8th of January, 2013.

Before dilating upon the merits of the case, we would like to embark upon the question of maintainability of instant appeal in the light of available record. The instant appeal has been preferred in terms of Section 3 of the Law Reforms Ordinance, XII of 1972 which reads as under :

“Appeal to High Courts in certain cases.

(1) An appeal shall lie to a Bench of two or more Judges of a High Court from a decree passed or final order made by a single Judge of that Court in the exercise of its original civil jurisdiction.

(2) An appeal shall also lie to a Bench of two or more Judges of a High Court from an order made by a Single Judge of that Court under [clause (1) of Article 199 of the Constitution of the Islamic Republic of Pakistan] not being an Order made under sub-paragraph (i) of paragraph (b) of that clause:

Provided that the appeal referred to in this sub-section shall not be available or competent if the application brought before the High Court under Article [199] arises out of any proceedings in which the law applicable, provided for at least one appeal [or one revision or one review] to any Court, Tribunal or authority against the original order.

(3)

(4)”

7. Bare reading of the above provision of law, clearly postulates that the appeal referred to in this Section shall not be available or competent if the appellant filed the petition before the High Court under Article 199 against the order which arises out of any proceedings in which the law applicable provided for at least one appeal or one revision or one review to any Court, Tribunal or authority against the original order. The appellant in the first instance, challenged his termination order through an appeal before respondent No.2 which was dismissed by way of order dated 8th of January, 2013 and the petitioner challenged the said order through writ petition. Thus in presence of remedy of appeal against the original order of termination dated 14th of May, 2011, instant intra court appeal is not competent before this Court. Reliance in this regard can safely be placed on the case of ***Mst. Karim Bibi and others Vs. Hussain Bakhsh and another (PLD 1984 Supreme Court 344)***. The relevant extract of the same is reproduced below :

“A plain reading of the proviso to subsection (2) of section 3 of the Law Reforms Ordinance means that no appeal will be available or competent before a Bench of two or more Judges of a High Court from an order made by a Single Judge of that Court in a Constitutional Petition, if such petition arises out of “any proceedings” in which the law applicable provided for at least one appeal against the original order. The reference is clearly to the proceedings taken under any statute which prescribes a hierarchy of officers or authorities for the carrying into effect the purposes of such statute

including the enforcement of rights, if any, created thereunder. In such a case clearly the law envisages an original order against which the remedy of appeal was provided by the relevant statute. In the facts of the present case the relevant statute is the Displaced Persons (Compensation and Rehabilitation) Act, 1958 which had created a hierarchy of officers to deal with the rights created thereunder in favour of persons entitled under the said Act and the Schemes framed thereunder, inter alia, to the transfer of erstwhile Evacuee Properties from the compensation pool of such properties constituted under the provisions of the Act. By section 19 of the said Act a right of appeal was provided to the next higher officer in rank from the original order passed by an officer of the settlement establishment. Apart from the remedy of appeal so provided the Act also vested powers of revision in the higher officers of the settlement establishment under section 20 as well as the power of review. However, by the Evacuee Property and Displaced Persons Laws (Amendment) Act, 1973 which came into force on 30-7-1973 section 19 of the Displaced Persons (Compensation and Rehabilitation) Act, 1958 was omitted with the result that remedy of appeal was abolished with effect from the said date. The Constitutional Petition was filed by the first respondent hereinbefore the High Court much later on 8-12-1973 which was allowed by the

learned Single Judge on 8-7-1974. The Letters Patent Appeal, as already stated, was presented by the appellants in the High Court on 31-8-1974. It is urged on behalf of the appellants that the relevant date for the application of the proviso to subsection (2) of section 3 of the Law Reforms Ordinance would be the date on which the Constitutional Petition was filed in the High Court and construing the provisions of the proviso accordingly, the Letters Patent Appeal was competent in law inasmuch as, on that date no appeal lay from the original order passed in the proceedings. It was further argued that the word “proceedings” occurring in the proviso is used in the restricted sense and would connote, in the present case, the proceedings commenced by the Additional Settlement Commissioner by issuing notice of the suo motu revision to the parties and as there was no appeal provided against the order passed in suo motu revision, in terms of the proviso the Letters Patent Appeal was competent. Learned counsel for the appellants also advanced an alternative argument that the proceedings in the case had arisen out of the order of the Additional Settlement Commissioner passed on 24-11-1973, at which time the Displaced Persons (Compensation and Rehabilitation) Act, 1958 was amended taking away the right of appeal.

After giving our anxious consideration to the arguments urged in support of this appeal we are, however, not impressed by any of the contentions raised. The test laid down by the Legislature in the proviso is that if the law applicable to the proceedings from which the Constitutional Petition arises provides for at least one appeal against the original order, then no appeal would be competent from the order of a Single Judge in the constitutional jurisdiction to a Bench of two or more Judges of the High Court. The crucial words are the “original order”. It is clear from the wording of the proviso that the requirement of the availability of an appeal in the law applicable is not in relation to the impugned order in the Constitutional Petition, which may be the order passed by the lowest officer or authority in the hierarchy or an order passed by higher authorities in appeal, revision or review, if any, provided in the relevant statute. Therefore, the relevant order may not necessarily be the one which is under challenge but the test is whether the original order passed in the proceedings subject to an appeal under the relevant law, irrespective of the fact whether the remedy of appeal so provided was availed of or not. Apparently the meaning of the expression “original order” is the order with which the proceedings under the relevant statute commenced. The word “proceedings” has been used in different enactments and has been subject

to judicial interpretation in a number of cases wherein it has received either restricted or wide meaning according to the text and subject-matter of the particular statute. I do not consider it necessary to notice the various judgments in which this word was so construed. Suffice it to refer to the case of Nawab Din v. Member Board of Revenue (1) in which this Court had occasion to examine the scope and meaning of the word as it occurs in section 2 (2) of the Evacuee Property and Displaced Persons Laws (Repeal) Act, 1975. A useful discussion will be found in this case with reference to precedents as the meaning of the term “proceedings”. An earlier case of Jan Muhammad and another v. Home Secretary, West Pakistan and others (2) was referred to in this connection and the view taken therein was declared by this Court as the correct enunciation of the law on the subject. In the latter case reference was made to the definition of the term “proceedings” in the book “Words and phrases” which may usefully be reproduced as under ;

“The term ‘proceedings’ is a very comprehensive term, and, generally speaking, means a prescribed course of action for enforcing a legal right, and hence it necessarily embraces the requisite steps by which judicial action is invoked. A ‘proceedings’ would include every step taken

towards the further progress of a cause in Court or before a Tribunal, where it may be pending. It is the step towards the objective to be achieved, say for instance the judgment in a pending suit. The proceeding commences with the first step by which the machinery of the law is put into motion in order to take cognizance of the case. It is indeed a comprehensive expression and includes all possible steps in the action under the law, from its commencement to the execution of the judgment.”

Thus in the light of above discussion we were of the considered view that the instant intra court appeal is not competent in terms of Section 3 of the Law Reforms Ordinance, 1972.

8. Adverting to the merits of the case, it is observed that the status of the appellant was a contract employee. He was employed in the year 2005 and later on his employment period was extended from time to time but his status did not change with these extensions and he will remain as a contract employee which is even otherwise admitted position on the record. Learned Law Officer appearing on behalf of the respondents has also submitted that the project for which the services of the petitioner was hired that has ended. The services of the appellant were terminated on account of his willful absence after issuance of show cause notice and after affording him opportunity of personal hearing. Though he has remained in employment for about six years but his status never changed and he remained employee of the respondents on contract basis. Dismissal from

employment before expiry of period of service even did not equip the petitioner with the right to challenge the same through constitutional petition. He can at the most, claim damages to the extent of unexpired period of his service if the concerned court reaches at the conclusion that his termination was illegal and unlawful. Reliance in this regard can be placed on the case of ***Federation of Pakistan through Secretary Law Vs. Muhammad Azam Chattha (2013 SCMR 120)***. The Hon'ble Supreme Court of Pakistan in the case supra has laid down the following principles :

“It is not only the respondent whose notification of the appointment was declared unconstitutional but there were so many others along with him, as is evident from the notification dated 10-11-1996, referred to hereinabove, whose services were terminated. So it is abundantly clear that respondent lost his job because of the judgment of the Lahore High Court and for this reason alone, perhaps he had not challenged the order of termination of his contract before any forum for a considerably long period. The question is that a person whose fate has been so determined, although he was a contract employee, had no legal entitlement to continue in contract employment because subject to holding him entitled to draw salary in lieu of the notice period, he could not have agitated the matter in any manner. In addition to it, it is a cardinal principle of law that a contract employee instead of pressing for his

reinstatement to serve for the leftover period can at best claim damages to the extent of unexpired period of his service.”

9. Similarly in the case of *Abid Iqbal Hafiz and others Vs. Secretary, Public Prosecution Department, Government of the Punjab, Lahore and others (PLD 2010 Supreme Court 841)*. The Hon’ble Apex Court held that after having been accepted the conditions of service, the petitioners had no locus standi to file the writ petitions seeking writs of prohibition and mandamus to the respondents to refrain from terminating their services and to retain them on their present posts on regular basis. The relevant extract of the said judgment for the case in hand is reproduced below :

“The action impugned before the High Court was taken by the Government, not at its own, but in pursuance of the orders of the High Court. Having accepted the said conditions of service, the petitioners had no locus standi to file the writ petitions seeking writs of prohibition and mandamus to the respondents to refrain from terminating their services and to retain them on their present posts on regular basis, which the learned Full Bench of the Lahore High Court rightly declined to issue. Further, it was argued by some of the counsel before the Full Bench of the Lahore High Court that since their clients/petitioners had been cleared/retained by the Committee, they would continue in service for the period of the contract appointment, i.e. until the

arrival of the selectees of the Commission or those of the Committee. Such an argument was destructive of the plea of the learned counsel for the petitioners before us that the Department was debarred from making temporary/officiating appointments for a long period with mala fide intention in the light of the law laid down in Abdul Majid Sheikh's case (supra) and Jafar Ali Akhtar Yousafzai v. Islamic Republic of Pakistan PLD 1970 Quetta 115 and later turning up to terminate their services on the eventualities, which were their own creation."

10. In the light of principles laid down by the Hon'ble Supreme Court of Pakistan in the matters relating to the contractual employment and the available record, we are of the considered view that while dismissing the writ petition filed by the appellant, the learned Judge in Chambers has acted in accordance with law and no illegality whatsoever has been committed while dismissing the writ petition. The appellant, being the employee on contract basis cannot claim to be retained in service for a longer period than as prescribed in the contract of his service. The appellant was even otherwise proceeded due to his willful absence and the authorities, after due diligence exercise their powers to terminate his service. When once the terms of service have been accepted by the appellant, he cannot wriggle out of the same as he has even otherwise now estopped by his words and conduct to challenge the said terms and conditions.

11. The nutshell of the above discussion is that the appellant was having no vested right to plead through the writ petition which was rightly dismissed by the learned Single Judge in Chambers. The instant appeal is incompetent as well as without any merit and is, therefore, **dismissed in limine** without any order as to costs.

(SHAHID BILAL HASSAN)
JUDGE

(MIRZA VIQAS RAUF)
JUDGE

*Shahbaz Ali**

Approved For Reporting

(MIRZA VIQAS RAUF)
JUDGE